

Jagnayak Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 August 2022 · WRIT - C No. - 20261 of 2022 · **Writ disposed; liberty to file para 6.8 objection; coercive recovery stayed.**

HEADNOTE

A consumer's writ to quash a recovery certificate and restrain coercive recovery was disposed of without any opinion on merits. On the distribution licensee's statement that an objection to the demand would be decided in a time-bound manner, the Court granted liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directed disposal in accordance with law preferably within the next four weeks after hearing, and stayed coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Jagnayak Singh approached the Allahabad High Court seeking certiorari to quash a recovery certificate dated 21 February 2022 and a mandamus restraining coercive action on that certificate. The respondents were the State of Uttar Pradesh and the power distribution corporation (respondent no. 2). Counsel for the corporation stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection under para 6.8 against recovery demand

HOLDING

Without expressing any opinion on merits, the writ challenging a recovery certificate is disposed of by granting liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks. If so submitted, the objection shall be decided in accordance with law, preferably within the next four weeks, after reasonable opportunity of hearing. No coercive action on the impugned demand shall be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against a recovery certificate disposed of by relegating the consumer to an objection under para 6.8, to be decided in accordance with law after hearing, with a time-limited stay of coercive recovery. ¶ 1

alternative-remedy-statutory-appeal-6.8 The Court accepted the licensee's statement that an objection to the demand would be decided in a time-bound manner and declined to examine the recovery on merits in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 21.02.2022 AND THE UNDERLYING DEMAND

Disposed of without expressing any opinion on merits; relegated to para 6.8 objection. ¶ 1